

Court No. - 40

Case :- WRIT - C No. - 16629 of 2023

Petitioner :- Mohd.Shamsul Islam

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Chandra Kumar Rai, Shivendra Nath Singh

Counsel for Respondent :- C.S.C., Chetan Chatterjee

Hon'ble Mahesh Chandra Tripathi, J.

Hon'ble Manjive Shukla, J.

1. Heard learned counsel for the petitioner, learned Addl. Chief Standing Counsel for the State and Sri Chetan Chatterjee, learned counsel for the respondent no. 3-Electricity Department.

2. Present Writ Petition has been filed assailing the validity of impugned recovery citation dated 2.9.2022 issued by the Executive Engineer/ Prescribed Authority- respondent no. 3 against the petitioner asking the petitioner to deposit Rs. 4,50,775/- and further seeking a direction to the respondent authorities not to take any coercive action against the petitioner pursuant to the impugned recovery citation.

3. Learned counsel for the petitioner submits that the petitioner is having the electricity connection of 2 KVA. He states that while fastening the liability upon the petitioner, respondent authorities have given complete go-bye to the procedure provided under the Electricity Act, 2003 (in brevity the 'Act 2003') and the U.P. Electricity Supply Code, 2005 (in brevity the 'Code 2005'). Under Part XII Section 126 of the Act 2003 provides assessment after investigation. Sub Section 3 of Section 126 contemplates that the person, on whom an order has been served under sub-section (2) shall be entitled to file objections, if any, against the provisional assessment before the assessing officer, who shall, after affording a reasonable opportunity of hearing to such person, pass final order of assessment within thirty days from the from the date of service of such order of provisional assessment, of the electricity charges payable by such person. However, in the present case, no such procedure has been adhered by the respondent authorities as such, the impugned recovery citation is liable to be quashed.

4. Shri Chetan Chatterjee, learned counsel for Purvanchal Vidyut

Vitran Nigam has placed detailed instructions before the Court indicating therein that the premises was inspected by the authority on 02.11.2020 and the provisional assessment report was prepared on 9.3.2021 thereafter it was sent to petitioner through registered post on 15.3.2021. Sub-section (3) of Section 126 of the Electricity Act, 2003 mandates the supply of the provisional assessment order to the incumbent against which he has right to file objections and it is only after considering the objections, the respondents can pass a final assessment order. In the present case, final assessment order was passed on 24.3.2022.

5. Shri Chetan Chatterjee and learned Standing Counsel submit that assessment proceedings have already been finalized against the petitioner and in case the petitioner is aggrieved with the same, he has got alternative efficacious remedy to file an appeal under Section 127 of the Electricity Act. Therefore, the present writ petition is liable to be dismissed on the ground of statutory alternative remedy.

6. Heard rival submission and perused the record. Admittedly the inspection was carried out on 02.11.2020. Thereafter the provisional assessment was done on 09.03.2021 followed by the final assessment on 24.03.2022. Sub Section 3 of Section 126 of the Act 2003 clearly provides that the final assessment would be carried out within thirty days of the date of service of provisional assessment order, which mandate has not been adhered by the respondent authorities.

7. Considering the facts and circumstances of the case, we are of the considered opinion that the entire process, which has been adopted by the respondent-electricity department, is *per se* unsustainable and as such the entire proceeding including the impugned recovery citation dated 2.9.2022 issued by the Executive Engineer/ Prescribed Authority- respondent no. 3 is set aside. The respondent-authority is free to proceed against the petitioner in accordance with law,.

8. Subject to the observations made above, writ petition stands **disposed of**.

Order Date :- 17.5.2023

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